

Court No. - 39

Case :- WRIT - C No. - 61628 of 2016

Petitioner :- Ravi Upadhyay

Respondent :- State Of U.P. And Another

Counsel for Petitioner :- Surendra Yadav

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Dilip Gupta,J.

Hon'ble Siddhartha Varma,J.

The petitioner had earlier filed Criminal Misc. Writ Petition No.19753 of 2016 for quashing of the First Information Report that had been registered under Section 138(b) of the Indian Electricity (Amendment) Act, 2003 in Police Station-Phoolpur, District Varanasi. This petition was disposed of on 7 September 2016 with the following observations:

"Considering the facts and circumstances of the case, we dispose of the petition with the direction that the petitioner shall file and pursue his representation for settling the disputed bills before the concerned authority, who shall also decide the matter within one month from the date of production of certified copy of this order in accordance with law.

For period of one month or till the submission of police report under Section 173(2) Cr.P.C. whichever is earlier, the petitioner shall not be arrested in the aforesaid case."

The representation filed by the petitioner has been decided by order dated 27 October 2016. It has been stated that the entire amount due against the petitioner upto September 2016 is Rs.2,10,335.00. Even according to the petitioner, he has deposited Rs.5,54,876/- as against Rs.6,62,327/-.

Learned counsel for the petitioner has, however, raised a dispute about the connection bills that have been issued.

If that be so, it is for the petitioner to invoke the remedy provided for under Clause 6.5 of the Electricity Supply Code, 2005.

Leaving it open to the petitioner to do so, we dispose of this petition.

Order Date :- 3.1.2017
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(Dilip Gupta, J.)

(Siddhartha Varma, J.)